

TENTATIVE RULING

Case: **Bermudez v. Kia America, Inc.**
Case No. CV2023-0867

Hearing Date: **June 9, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff Mayra Bermudez (“plaintiff”) filed an untimely reply. (Code Civ. Proc., § 1005, subd. (b) [all reply papers must be filed with the court and a copy served on each party at least five court days before the hearing].) Despite being untimely, the Court will consider plaintiffs’ reply. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

Plaintiff’s request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendant Kia America Inc.’s (“defendant”) objection to plaintiff’s request for judicial notice is **OVERRULED AS MOOT**.

Defendant’s objections to evidence numbers 1, 2, 3, 4, 10, and 11 are **OVERRULED**.

Defendant’s objections to evidence numbers 5, 6, 7, 8, and 9 are **SUSTAINED**.

Plaintiff’s motion for attorney fees, costs, and expenses is **GRANTED IN PART** in the amount of **\$61,766.50**. (Civ. Code. § 1794.) The Court finds that:

- Plaintiff’s counsel’s rates are reasonable and commensurate with the prevailing rate in the community. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004, 1009; *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71–72; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243; see *Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1005 [the hourly rates sought by and awarded to counsel in other similar cases is evidence of the basic rates charged by lawyers, law clerks, and paralegals and is the starting point of the fee award]; Shahian Decl., ¶¶ 1–14, 24, Exh. 1.)
- Defendant has not shown that any of the challenged fees are excessive or were not reasonably incurred by plaintiff in connection with the commencement and prosecution of this action. (Civ. Code, § 1794, subd. (d); *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396 [“...verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.”]; *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 105, fn. 6.; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133; Shahian Decl., ¶ 24, Exh. 1.)

- A multiplier is not warranted in this straightforward Song-Beverly Consumer Warranty Act case. (See *Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556-557; *Downey Cares v. Downey Community Development Com.* (1987) 196 Cal.App.3d 983, 994; Shahian Decl., ¶¶ 2-4, 19-20.)
- The Court declines to award attorneys' fees as requested for the time Aarushi Khanna ("Khanna") spent working on the reply. (Baker Decl. ISO Reply, ¶ 4.) Khanna did not submit a separate declaration regarding the hours she spent working on the reply. The statements by Angel M. Baker regarding the time Khanna spent working on the reply are hearsay. (Evid. Code, § 1200; Baker Decl. ISO Reply, ¶ 4.) The Court further declines to award attorneys' fees for time not yet incurred. (Baker Decl. ISO Reply, ¶ 5.)

Plaintiff's request for costs and expenses in the amount of **\$20,398.17** is **DENIED WITHOUT PREJUDICE**. Plaintiff did not file a memorandum of costs. (Cal. Rules of Court, rule 3.1700(a).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Capital One, N.A. v. McKinnon**
 Case No. CV2025-0784

Hearing Date: **June 9, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Capital One, N.A.'s motion for order that matters in request for admission of truth of facts be deemed admitted is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 2033.280.) Plaintiff failed to serve the motion electronically on defendant Melinda McKinnon's counsel as required. (Cal. Rules of Court, rule 2.251(c); Code Civ. Proc., § 1010.6, subd. (i); YCR 7.2.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.